

HOUSE BILL 365

By Fritts

AN ACT to amend Tennessee Code Annotated, Title 5 and Title 6, relative to equal representation for the citizenry of this state.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 6, Chapter 54, Part 1, is amended by adding the following as a new section:

A municipality, or an instrumentality of a municipality, shall not take any action that affects or has the potential to affect the tax obligations, fees, or other costs for real property owners whose property is located outside a municipality's corporate boundary, unless the action is approved by the county legislative body in which such property is located.

SECTION 2. Tennessee Code Annotated, Section 6-58-114, is amended by designating subsection (a) as subdivision (a)(1) and adding the following new subdivision (a)(2):

(2) It is further the intent of the general assembly that the membership of joint economic and community development boards be representative of the populations of the cities and counties for which the board is formed.

SECTION 3. Tennessee Code Annotated, Section 6-58-114, is amended by adding the following new subsection (m):

(1) Notwithstanding this section to the contrary, at least ninety percent (90%) of a county's population represented by a board created under this section must be proportionately represented on a per capita basis by the members of such board not later than July 1, 2029. After July 1, 2029, each board must remain in compliance with this subdivision (m)(1).

(2) To facilitate subdivision (m)(1), as existing board members' terms expire, newly appointed or elected members, in addition to satisfying all other criteria for appointment or election, are only qualified if their election or appointment revises the board's representation of a county's population in a manner that incrementally brings the board into compliance with subdivision (m)(1) on or before July 1, 2029.

(3) The department of economic and community development, in consultation with representatives of joint economic and community development boards, shall promulgate rules to create the mechanism by which each board must incrementally transition into compliance with subdivision (m)(1). The rules must be promulgated in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5, and within the existing resources of the department. The mechanism:

(A) Must, as necessary by jurisdiction:

(i) Provide for a percentage deviation of no more than five percent (5%) below the ideal average population representation prescribed by subdivision (m)(1);

(ii) Adjust the number of members on a board to facilitate compliance with subdivision (m)(1); and

(iii) Be adjusted every ten (10) years following the release of the most recent decennial census by the United States census bureau.

(4) For purposes of this subsection (m), a county's population includes the population of each municipality within such county.

SECTION 4. This act takes effect upon becoming a law, the public welfare requiring it.